



POLICE DEPARTMENT

June 5, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208707 (Incident Date:) regarding Police Officer Jerson Guaman-Garcia, Tax No. 967909 (DADS No. 2024-30072) and Police Officer Jose Fuentes, Tax No. 957602 (DADS No. 2024-30073)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202208707, pertaining to Police Officers Jerson Guaman-Garcia and Jose Fuentes. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said members of the service would be detrimental to the Police Department's disciplinary process.

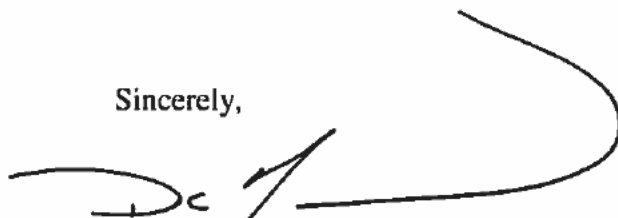
After analyzing the facts and circumstances of the alleged misconduct, the Police Commissioner intends to issue no disciplinary action for the allegation that the officers' improperly entered and searched an individual's apartment. Officers Guaman-Garcia and Fuentes, assigned as Domestic Violence Prevention Officers, were conducting a home visit where the tenant tacitly consented to their entry into his apartment. The tenant welcomed Officer Fuentes with a hug and closed the apartment door after both officers were in the apartment. Later, the complainant's daughter provided explicit consent to the officers to search a bedroom where the officers located and arrested the complainant for violating an order of protection the tenant had against her. Thus, the Police Commissioner finds that the entry and search were within guidelines. However, the Police Commissioner agrees with the CCRB's finding that Officer Fuentes's statement to the complainant was discourteous and served no legitimate law enforcement purpose.

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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose no disciplinary action against Police Officers Guaman-Garcia and Fuentes for the allegations for improper entry and search. However, the Police Commissioner intends to direct the issuance of a Schedule "A" Command Discipline against Police Officer Fuentes for the discourtesy allegation.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
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ARVA RICE
INTERIM CHAIR

June 10, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202208707 (Incident Date:) regarding Police Officer Jerson Guaman-Garcia, Tax No. 967909 (DADS No. 2024-30072) and Police Officer Jose Fuentes, Tax No. 957602 (DADS No. 2024-30073)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated June 5, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and impose no disciplinary action against Police Officers Guaman-Garcia and Fuentes for the allegations for improper entry and search., and only direct the issuance of a Schedule “A” Command Discipline against Police Officer Fuentes for the discourtesy allegation. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing CCRB’s request for Charges and Specifications and having analyzed the facts and circumstances in this matter, you have “determined that to pursue Charges and Specifications against both officers would be detrimental to the Police Department’s disciplinary process.” CCRB disagrees with this determination.

In their CCRB interviews both PO Guaman-Garcia and PO Fuentes stated that they did not verbally request § 87(2)(b) permission before entering his apartment. Both officers stated that consent is required when entering someone’s home during a domestic violence home visit, and that if such consent is not granted then officers cannot enter the apartment unless there is an apparent emergency. Neither officer stated that they believed that such an emergency was occurring during this incident and stated that § 87(2)(b) demeanor seemed normal, and he seemed unharmed.

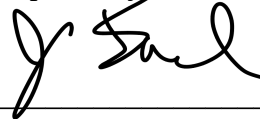
As per both officers’ body worn camera footage, PO Fuentes stepped across the threshold of § 87(2)(b) apartment door immediately after § 87(2)(b) opened it. The officers did not ask for consent to enter or wait for § 87(2)(b) to invite them in. They gave no time for § 87(2)(b) to engage

in any gesture which might be interpreted as an invitation inside. PO Guaman-Garcia and PO Fuentes stated that § 87(2)(b) movement of his right arm to shake PO Fuentes' hand constituted implied consent based on their prior interactions with § 87(2)(b). However, PO Fuentes' body worn camera footage reveals that he initiated the handshake and did so after stepping across the threshold. Both officers stated that they had entered § 87(2)(b) apartment numerous times before this incident. While they may have received consent from § 87(2)(b) on some earlier date or dates, said consent did not constitute an indefinite invitation for the officers to enter § 87(2)(b) home. Additionally, both officers also stated that § 87(2)(b) had, on occasion, declined to allow officers to enter his apartment.

Once the officers were inside, the body worn camera videos show § 87(2)(b) telling officers multiple times that he "is good," that "everything is good," and that "nobody is bothering me," in response to their questions about § 87(2)(b) presence in his apartment, indicating his reservations about the officers having entered his apartment. Given that PO Guaman-Garcia and PO Fuentes planned to arrest § 87(2)(b) when they entered § 87(2)(b) apartment, per *Payton v. New York*, 445 U.S. 753 (1980)¹, they were required to obtain consent before entering the home. § 87(2)(b) did not have time to consent - or to object - to PO Guaman-Garcia's and PO Fuentes entry. Likewise, PO Guaman Garcia and PO Fuentes did not wait for § 87(2)(b) to provide the implicit consent they stated that they had received during previous visits. They instead entered immediately, without consent, to make an arrest in violation of *Payton*.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against PO Guaman-Garcia and PO Fuentes in this matter.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

¹ *Payton v. New York*, 445 U.S. 753 (1980) (BR 14) established that, absent exigent circumstances or consent, officers cannot enter a private residence to make a warrantless arrest. This ruling, in part, analyzed the arrest of a man who did not have time to consent or object to officers entering his home to arrest him before they did so, and the *Payton* court found that this entry was unlawful.



POLICE DEPARTMENT

June 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202208707 (Incident Date: December 12, 2022) regarding Police Officer Jerson Guaman-Garcia, Tax No. 967909 (DADS No. 2024-30072) and Police Officer Jose Fuentes, Tax No. 957602 (DADS No. 2024-30073)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated June 10, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officers Jerson Guaman-Garcia and Jose Fuentes. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officers Jerson Guaman-Garcia and Jose Fuentes for the reasons expressed in my June 5, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs that no disciplinary action be imposed against Police Officers Guaman-Garcia and Fuentes for the allegations for improper entry and search. However, the Police Commissioner directs the issuance of a Schedule "A" Command Discipline against Police Officer Fuentes for the discourtesy allegation.

Sincerely,

AS
NSP
Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office